

Court No. - 39

Case :- WRIT - C No. - 32242 of 2022

Petitioner :- Arif Hussain

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Pankaj Agarwal

Counsel for Respondent :- C.S.C.,Gaurav Tripathi,Sunil Kumar Dubey

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Vipin Chandra Dixit,J.

Heard Sri Shivam Agarwal, Advocate holding brief of Sri Pankaj Agarwal, learned counsel for the petitioner and Sri Tushar Krishnam, Advocate holding brief of Sri Gaurav Tripathi, learned counsel appearing for the respondent no.2.

The petitioner herein claims that he is owner in occupation of House No.23/509, Wazirpura, Agra, wherein an electricity connection in the name of the petitioner namely connection No.674333898 had been granted in the year 2015. It is contended that on account of outstanding in relation to another electricity connection No.670015382, in the name of Abdul Shakoor, maternal grand-father of the petitioner herein, the Electricity Department has disconnected the electricity supply of the petitioner on 13.10.2022. The dispute has been raised with regard to recovery of outstanding in relation to connection in the name of Abdul Shakoor, maternal grand-father of the petitioner herein, with the submission that the consumer had died about 50 years back and no recovery can be made in view of Section 56 of the Electricity Act, 2003. Reference has been made to the decision of this Court to assert that after death of the consumer, recovery cannot be made from the occupant of the house having new connection.

Noticing the above submission, we find that the issue being raised herein requires a factual enquiry. For any dispute in relation to the recovery of electricity bill, the petitioner has a remedy to approach the Executive Engineer concerned by invoking Clause 6.5 of the U.P Electricity Supply Code, 2005.

Learned counsel for the petitioner submits that a representation has already been filed which has not been decided till date.

Be that as it may, we provide that the petitioner shall move a representation/application before the Executive Engineer concerned within a period of one week from today along with the copy of this order. On receipt of the said representation, the Executive Engineer concerned shall be under obligation to take an expeditious decision dealing with all points of objections raised by the petitioner herein.

Due enquiry is required to be made by the Executive Engineer concerned as to how and in what manner new connection has been provided to the petitioner in the year 2015, when there were dues in relation to the old connection in the property in question.

As regards the temporary disconnection of the electricity supply w.e.f. 13.10.2022, we provide that the respondent no.2 namely Torrent Power Limited shall restore the electricity supply of the petitioner in relation to the electricity connection No.674333898, granted in the name of the petitioner.

The intimation of this order shall be given to concerned authority by the petitioner within a period of 24 hours so as to facilitate them to restore the electricity supply. It is further directed that the petitioner shall continue to pay the electricity bill pertaining to the electricity connection in his name. It is further made clear that the Executive Engineer shall be required to undertake independent enquiry without being influenced by any of the observations made herein above.

The writ petition is disposed of, accordingly.

Order Date :- 25.11.2022

Kpy